

Engagement Scope

Data Protection Readiness Assessment

Sports Tech Africa Limited ("STZA")

for

ProTouch Sports (Pty) Ltd ("ProTouch")

v5 Final for Issue | 24 July 2026

1. Background

ProTouch Sports (Pty) Ltd (registration 2015/151949/07) operates the Podium Pursuit platform, an athlete intelligence and engagement system processing personal data on approximately 6,000 athletes across 62 nations. The platform's data architecture spans two anchor regulatory regimes: the Protection of Personal Information Act, 2013 (POPIA) in South Africa and the UAE Personal Data Protection Law (Federal Decree-Law No. 45 of 2021, "PDPL"). The platform is also available for download in additional jurisdictions, including the United Kingdom and European Union, which may engage further regulatory obligations.

ProTouch has undertaken a compliance clean-up exercise and has submitted a document pack for review. This engagement scope sets out the terms on which STZA will conduct a data protection readiness assessment of that document pack and the platform's compliance posture.

This engagement is governed by the mutual non-disclosure agreement between the parties dated 26 June 2026 ("NDA"), which continues in full force.

2. Engagement description

STZA will conduct a **Data Protection Readiness Assessment** — a consulting engagement to review ProTouch's data protection documentation, identify gaps and inconsistencies, assess compliance posture against applicable regulatory requirements, and produce a prioritised set of findings and recommendations.

3. Scope boundaries and next steps

This engagement is the first stage in what may become a longer advisory relationship. The boundaries below clarify what this stage covers and what naturally follows later, should both parties wish to continue.

(a) Advisory, not appointment. This engagement is a consulting assessment. It does not constitute an appointment as Data Protection Officer (under PDPL) or Information Officer (under POPIA). Should the assessment indicate that such an appointment would benefit ProTouch, STZA can discuss this as a potential next-stage engagement with its own terms,

including confirmation of professional indemnity insurance and any required regulatory notifications.

(b) Findings and recommendations, not sign-off. The deliverables identify gaps, risks, and recommended actions. They are advisory in nature and do not constitute approval, certification, or sign-off of any document, process, or system. ProTouch should not represent to third parties that any document has been approved by STZA.

(c) Regulatory and compliance perspective, not legal advice. The engagement principal, Nik Mladenovic, is a Chartered Accountant (South Africa) with data protection credentials (Moonstone Managing POPIA; i2 Comply Advanced Online Data Protection and GDPR). He brings a regulatory compliance lens, not a legal one. Where findings raise questions of law (including lawful basis interpretation, cross-border transfer mechanisms, or contractual liability), ProTouch should obtain independent legal advice.

(d) Jurisdictional depth. This assessment focuses primarily on POPIA (South Africa). Observations on UAE PDPL and GDPR compliance are included where material gaps or risks are identified, but these are flagged as observations requiring specialist confirmation rather than formal assessments. Where the assessment identifies that the platform's availability in other jurisdictions may engage additional regulatory obligations (including under the Swiss FADP), these will be noted as findings for specialist follow-up. Deeper PDPL advisory and dedicated GDPR assessments can be scoped as follow-on engagements.

4. Scope of services

4.1 Document pack review

Review of the following documents submitted by ProTouch (and any additional documents provided before the assessment commences that are reasonably related to this engagement and do not materially expand its scope. Where additional documentation materially increases the work required, STZA will discuss a variation to scope and fees before proceeding):

- Podium Pursuit Privacy Policy v4.0 (June 2026)
- Podium Pursuit Cookie Policy v1.0 (June 2026)
- DPO Review Pack — Positioning Change v1.1
- Annexure H — Data Protection (investor governance posture)
- Fund Your Passion Terms of Use v1.0
- Podium Pursuit Complete FAQ v1.1
- Podium Pursuit Introduction Primer
- DPO Cover Note

The review will assess each document for:

- Internal consistency and alignment with the other documents in the pack
- Accuracy of regulatory references and lawful basis assertions
- Coverage of required disclosures and commitments under POPIA (primary focus), with observations on PDPL and GDPR
- Gaps, ambiguities, or statements that may create unintended commitments or liability

4.2 Missing documents identification

Identification and prioritisation of documents that should exist to support ProTouch's data protection posture but have not been provided, including (without limitation) Data Protection

Impact Assessments, PAIA Section 51 manual, operator/processor agreements, breach notification procedures, and Information Regulator registration evidence.

4.3 Compliance posture assessment

Primary assessment — POPIA (South Africa). A structured assessment of ProTouch's compliance posture against POPIA requirements, covering the following domains:

- Lawful basis and conditions for processing
- Data subject rights and mechanisms
- Cross-border transfer safeguards
- Operator/processor management and agreements
- Breach notification readiness
- Special categories and sensitive data handling
- Records of processing (ROPA readiness)
- Under-18 exclusion implementation
- Cookie and ePrivacy compliance
- AI processing transparency and governance

Cross-reference observations — UAE PDPL and GDPR. Where the POPIA assessment identifies gaps or risks that also have implications under the UAE PDPL or the GDPR, these will be noted as observations. These observations flag areas for attention but are not a formal assessment against those frameworks. Deeper PDPL or GDPR advisory can be scoped as follow-on work.

4.4 Platform walkthrough

A brief guided walkthrough of the live Podium Pursuit platform to verify:

- Privacy notice placement and accessibility
- Cookie consent mechanism implementation
- Data subject request mechanisms
- Any visible discrepancies between documentation and live operation

This is a desktop review, not a penetration test or technical security audit.

4.5 Use of technology

STZA uses AI-assisted tools, including large language models, to support document analysis, research, and drafting during its engagements. All AI-generated outputs are reviewed and validated by the engagement principal before inclusion in any deliverable; professional judgment and accountability remain with the named engagement team. Client data processed through these tools is handled via API and is not used to train or improve any third-party model. All such processing is subject to the confidentiality obligations in the NDA. STZA retains full responsibility for the quality and accuracy of all deliverables regardless of the tools used in their preparation.

4.6 Assumptions

This assessment is based on documentation, information and demonstrations provided by ProTouch Sports. Unless expressly agreed otherwise, STZA does not independently verify technical implementation, security controls, or operational practice, and findings are based on the information made available during the engagement.

5. Deliverables

#	Deliverable	Description
1	Findings report	Structured findings by compliance domain, each rated by severity (critical / high / medium / low / observation). Cross-referenced to POPIA sections. PDPL and GDPR observations and jurisdictional reach findings flagged separately.
2	Missing documents register	Prioritised register of documents that should exist but were not provided, classified as mandatory, recommended, or future. Each entry notes the regulatory or governance rationale and suggested ownership (ProTouch internal, legal adviser, or future DPO/IO).
3	Remediation roadmap	Prioritised action plan, sequenced by regulatory risk and effort. Distinguishes between actions ProTouch can take independently and actions requiring professional or legal input.
4	DPO/IO readiness note	A short assessment of whether the organisation is ready for a formal DPO (PDPL) and IO (POPIA) appointment, and what would need to be in place before such an appointment could be considered.

All deliverables will be provided as electronic documents (Word or PDF). One round of written comments from ProTouch is included, together with one review meeting of up to two hours; STZA will address comments and issue a final version. Comments should be provided within 10 business days of delivery. If comments are received after this period, STZA will use reasonable endeavours to address them but may need to re-familiarise with the engagement at additional cost.

6. What ProTouch needs to provide

Before the assessment can commence, ProTouch should provide:

1. Any Data Protection Impact Assessment(s) prepared for the platform
2. The Data Processing Agreement with Blocksport AG (referenced in the Privacy Policy), or confirmation that no current agreement is in place
3. Processing terms or DPAs with Apify, Anthropic, and OpenAI (or confirmation that none exist)
4. Information Regulator registration status — registration number or confirmation that registration has not been completed
5. PAIA Section 51 manual, or confirmation that one has not been prepared
6. Any internal data protection policies, procedures, or process notes (however informal)
7. Evidence or description of the under-18 athlete removal exercise
8. Access to the live platform for a guided walkthrough (screen-share session, approximately 30–60 minutes)

STZA will commence work within 5 business days of receiving either (i) the items listed above, or (ii) written confirmation from ProTouch that no further documents will be provided. Where items are not available, the assessment will proceed on the basis of the documents already provided, and the findings report will note what could not be assessed and why.

7. Fees

Element	Amount
Fixed fee — readiness assessment	GBP 2,000
Payment terms	50% on acceptance (GBP 1,000); 50% on delivery (GBP 1,000)
Additional work beyond scope	GBP 550 per day, agreed in writing

Fees are exclusive of VAT. STZA is a UK-registered entity; VAT treatment will be confirmed on invoice.

8. Timeline

Phase	Timing	Activity
1	Week 1	Receive outstanding documents; complete document review; platform walkthrough
2	Week 2	Draft findings report and remediation roadmap
3	Week 3	Deliver findings; receive ProTouch comments; issue final deliverables

Total estimated duration: approximately 3 weeks from receipt of documents. The walkthrough session will be scheduled at a mutually convenient time during week 1.

9. Confidentiality

The mutual NDA dated 26 June 2026 governs all confidential information exchanged in connection with this engagement. This scope document and all deliverables are Confidential Information for the purposes of the NDA.

10. Reliance

This report is prepared solely for ProTouch Sports (Pty) Ltd for the purposes described in this engagement. It may not be relied upon by any third party without STZA's prior written consent.

11. Limitation of liability

(a) STZA's total aggregate liability arising out of or in connection with this engagement, whether in contract, delict (tort), or otherwise, shall not exceed the total fees actually paid by ProTouch under this engagement.

(b) STZA shall not be liable for any indirect, consequential, or special loss or damage, including (without limitation) loss of profit, loss of revenue, loss of business, regulatory fines or penalties, or reputational damage.

(c) The deliverables are advisory only and are based on the documents and information provided by ProTouch. STZA does not warrant that the deliverables identify every compliance gap, risk, or deficiency. ProTouch remains solely responsible for its own compliance with applicable data protection law.

(d) Nothing in this clause excludes or limits liability for fraud, wilful misconduct, or death or personal injury caused by negligence.

12. Intellectual property

ProTouch owns the deliverables produced under this engagement and may use them for internal purposes. STZA retains ownership of its underlying methodologies, frameworks, templates, and tools, including any compliance assessment engine or scoring methodology used in preparing the deliverables. For the avoidance of doubt, ownership of the deliverables does not confer any right for third parties to rely on them, and Section 10 continues to apply.

13. Relationship to future engagement

This engagement is a standalone consulting engagement. It does not commit either party to a subsequent engagement, including (without limitation) a DPO appointment (PDPL), IO appointment (POPIA), ongoing retainer, or monitoring arrangement.

If both parties wish to explore a subsequent engagement, it will be the subject of a separate scope document with its own terms, including (where applicable) confirmation of professional indemnity insurance cover, supervisory authority registration, and engagement-specific service levels.

14. Engagement team

Role	Person
Engagement principal	Nik Mladenovic CA(SA), Director, STZA
Credentials	SAICA member; Moonstone Managing POPIA; i2 Comply Advanced Online Data Protection and GDPR

15. Governing law

This engagement scope is governed by the laws of the Republic of South Africa, consistent with the governing law of the NDA between the parties.

16. Acceptance

This engagement commences on written acceptance by ProTouch (email is sufficient) and payment of the first instalment.

Sports Tech Africa Limited

Companies House: 16850337

Director: Nik Mladenovic CA(SA)

Final for issue.